



CHAPTER clxxi.

An Act to enable the Isle of Thanet Gaslight and Coke Company to raise additional capital and for other purposes. A.D. 1914.
[7th August 1914.]

WHEREAS the Isle of Thanet Gaslight and Coke Company (hereinafter called "the Company") were incorporated by an Act of Parliament passed in the fifth year of the reign of His late Majesty King George the Fourth intituled "An Act for lighting with gas the towns or villages of Margate Ramsgate and Broadstairs and places adjacent in the County of Kent" (hereinafter referred to as "the Thanet Gas Act 1824") and were (amongst other things) authorised to manufacture and supply gas within the limits prescribed by the said Act:

And whereas further powers were conferred on the Company by the Thanet Gas Act 1877 and the Thanet Gas Act 1898:

And whereas the authorised capital of the Company consists of eighty-eight thousand pounds consolidated ordinary stock and eighty thousand pounds new ordinary stock each entitled to a standard dividend of three pounds ten shillings per centum per annum subject in each case to increase or decrease in accordance with the decrease or increase below or above their standard price of four shillings and twopence per thousand cubic feet in the price for the time being charged by the Company for gas supplied by them:

And whereas the whole of the consolidated ordinary stock has been issued and fully paid up and there remains to be issued of the new ordinary stock the sum of thirty-one thousand two hundred and twelve pounds seventeen shillings and sevenpence:

[Price 1s. 9d.]

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And whereas the Company have created and issued debenture stock to the nominal amount of eleven thousand pounds bearing interest at the rate of five pounds per centum per annum:

And whereas the demand for gas within the Company's limits of supply has increased and is increasing and it is expedient in order to meet such demand that the Company's works should be enlarged and extended and that the Company should be authorised to raise additional capital and that further powers should be conferred upon the Company as hereinafter provided:

And whereas a plan showing the lands which may be taken or used compulsorily under the powers and for the purposes of this Act and a book of reference to the plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Kent and are hereinafter referred to respectively as the deposited plan and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PRELIMINARY.

Short title. 1. This Act may be cited as the Isle of Thanet Gas Act 1914.

Incorporation of Acts. 2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital which provisions shall cease to apply to the Company) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Gasworks Clauses Acts 1847 and 1871 Provided that A.D. 1914.
section 13 of the former Act shall be read as if the
words "or any premises" were inserted after the words
"private building" and as if the words "Provided also
" that every such contract entered into by the Company
" shall be alike in terms and amount under like circum-
" stances to all consumers" were added at the end of
that section; and

The Lands Clauses Acts.

3. In this Act the several words and expressions to which Interpreta-
tion.
meanings are assigned by the Acts wholly or partially incorpo-
rated herewith have the same respective meanings unless there
be something in the subject or context repugnant to such
construction And in this Act—

The expression "the Company" means the Isle of Thanet
Gaslight and Coke Company;

The expression "the Acts of the Company" means the
Thanet Gas Act 1824 the Thanet Gas Act 1877 and the
Thanet Gas Act 1898;

The expression "the Act of 1877" means the Thanet Gas
Act 1877;

The expression "the Act of 1898" means the Thanet Gas
Act 1898;

The expression "the undertaking" means the undertaking
of the Company as authorised by the Acts of the
Company and this Act;

The expression "the limits of supply" means and includes
the limits of supply of the Company;

The expression "British thermal units" means British
thermal units gross per cubic foot of gas;

The expression "the corporation" means the mayor aldermen
and burgesses of the borough of Margate acting by the
council.

ADDITIONAL CAPITAL.

4. In addition to any sums which the Company are by Power to
raise addi-
tional
capital.
the Acts of the Company or by this Act otherwise authorised
to raise they may for the general purposes of the undertaking
from time to time raise additional capital not exceeding in the
whole one hundred thousand pounds by the creation and issue
of new ordinary shares or stock or new preference shares or

A.D. 1914. — stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds. Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred thousand pounds.

Additional capital not to be created until unissued authorised loan capital raised.

5. The Company shall not create and issue any additional capital under the powers of this Act until they have exercised the whole of their borrowing powers under the Acts of the Company.

New shares or stock to be sold by auction or tender.

6.—(1) All shares or stock created under this Act shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the town clerk of Margate and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be. A.D. 1914.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

7. Except as is otherwise by this Act provided the additional capital created by the Company under this Act shall be part of the general capital of the Company and the new shares or stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their shares or stock and be subject to the like provisions and liabilities as the holders of shares or stock of the same class in the existing capital of the Company Provided that

Privileges
&c. of
holders of
additional
capital.

A.D. 1914. — except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Power to borrow.

8. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital which at the time of borrowing has been created issued or raised under the powers or in pursuance of the provisions of this Act but no sum shall be borrowed in respect of any capital so created issued or raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

Appointment of receiver.

9. Section 14 (Appointment of a receiver) of the Act of 1898 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending thereunder at the passing of this Act The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth part of the total amount for the time being owing by the Company under this Act or any previous Act.

Debenture stock.

10. The Company may create and issue additional debenture stock subject to the provisions of section 13 of the Act of 1898.

Priority of mortgages over other debts.

11. All moneys raised by the Company on mortgage or debenture stock under the provisions of the Acts of the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any

lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interests on their mortgages or debenture stock. A.D. 1914.

12. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in cases of persons not *sui juris*.

13.—(1) The Company may apply to any purpose of the undertaking to which capital is properly applicable any moneys which they have raised or are authorised to raise under the Acts of the Company. Application of money.

(2) Subject to the provisions of this Act all money raised under this Act and for any purpose of the undertaking to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend Provided that in any case where a power to raise money by borrowing or to create a special purposes fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purposes be reckoned as part of the paid-up capital.

14.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called “the special purposes fund.” Power to create a special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

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(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund of the Company shall be credited to the special purposes fund.

(7) For the purposes of this section the paid-up capital of the Company shall be deemed to be at the date of the passing of this Act the sum of one hundred and four thousand and seventy-six pounds three shillings and fivepence.

Application
of excess of
profits over
authorised
rate of divi-
dend.

15. If the clear profits of the undertaking of the Company in any year after appropriating and setting apart such sum or sums (if any) as may be determined upon under the powers of the Acts of the Company or of this Act for any fund or funds thereby authorised amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year:

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rate on the ordinary and preference capital of the Company and subject as aforesaid the existing balance of undivided profits remaining after the 31st day of December 1914 shall be appropriated in the payment of the costs charges and expenses of this Act and to the special purposes fund.

ACQUISITION OF LANDS AND CONSTRUCTION OF GASWORKS.

Power to
take lands.

16. Subject to the provisions of this Act the Company may for the purposes of the undertaking enter upon take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as they may require for the purposes of the undertaking:

Provided that within three months from the passing of this Act the Company shall convey to the Broadstairs Gas Company at a price equal to the average price per acre paid by the Company for the purchase of all lands delineated on the deposited plan the lands numbered 2 and so much of the lands numbered 1 as is coloured pink on the plan signed in triplicate by Sir Harry Samuel the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and one copy of which plan is deposited with the Clerk of the Parliaments House of Lords another copy in the Private Bill Office of the House of Commons and the remaining copy with the clerk to the Broadstairs and St. Peter's Urban District Council.

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17. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of the acquisition of such lands be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

18. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Kent for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Kent and such certificate shall be kept by such clerk of the peace with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Correction of errors in deposited plan and book of reference.

19. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

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Persons
under dis-
ability may
grant ease-
ments &c.

20. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Powers as to
construction
and main-
tenance of
gasworks &c.

21. Subject to the provisions of this Act the Company may upon the lands described in the First Schedule to this Act erect maintain alter improve extend and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may on the said lands convert and manufacture residual products resulting from the manufacture of gas.

Power to
break up cer-
tain roads
and streets in
Broadstairs
Urban Dis-
trict.

22. Subject to the provisions of this Act the Company for the purpose of conveying gas from their existing works to and from the lands described in the First Schedule to this Act and for the purposes of the section of this Act whereof the marginal note is "Power to lay down pipes for ancillary purposes" and for those purposes only may exercise the provisions of the Gasworks Clauses Act 1847 with reference to the breaking up of streets and roads in connection with the roads and streets in the parish of St. Peter in the urban district of Broadstairs and St. Peter's hereinafter described (namely) (1) the road leading from Dane Valley Road in the borough of Margate in a south-easterly direction to its junction with the road next hereinafter described and (2) the road leading from such last-mentioned road over the Ramsgate Branch of the South Eastern and Chatham Railways on the north side of the lands described in the First Schedule to this Act (3) any other public road or street with the consent in writing of the Broadstairs and St. Peter's Urban District Council.

As to testing
station in
Margate.

23. The existing prescribed testing place for the purposes of the Gasworks Clauses Act 1871 shall be the prescribed testing place for the purposes of this Act until the Company shall commence to manufacture or shall obtain gas for supply in the borough of Margate at or from any works other than the works

of the Company existing at the date of the passing of this Act A.D. 1914.
 So soon as the Company shall have so commenced to manufacture
 or obtain gas they shall provide a testing place in such position
 in the said borough as may be reasonably approved by the
 corporation for the purpose of testing gas supplied for use in
 the said borough from any works whether within or beyond the
 borough and thereafter such last-mentioned testing place shall be
 the prescribed testing place for the purposes of this Act.

MISCELLANEOUS.

24.—(1) Within six months from the passing of this Act the Company shall provide at the prescribed testing place apparatus for testing the calorific power of the gas supplied by them at such testing place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905. Company to provide apparatus for testing calorific power.

(2) The said apparatus shall be the most suitable for ascertaining and shall be used in such a manner and under such conditions as to ascertain after any necessary calculations have been made the total heat value of the gas.

25. As from the date on which the Company shall have completed the provision of the apparatus referred to in the section of this Act of which the marginal note is “Company to provide apparatus for testing calorific power” at the prescribed testing place the following provisions shall apply:— Substitution of calorific power for prescribed illuminating power.

(a) The standard calorific power of the gas supplied by the Company in any part of the limits of supply shall be five hundred and forty British thermal units Provided that the Company shall not be liable to any penalty or proceedings for or in respect of any deficiency in the calorific power of the gas supplied by them except under and in accordance with the express provisions of this Act:

(b) One testing only for calorific power shall be made daily but in the event of the calorific power being on any testing ascertained to be below the standard calorific power to an extent exceeding seven and one-half per centum the gas examiner shall forthwith give notice thereof to the Company and a second testing shall be made at an interval of not less than

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one hour from the time of making the first testing at the prescribed testing place and the average of the two testings shall be deemed to be the calorific power of the gas at the prescribed testing place on that day :

- (c) Every enactment in force immediately before that date whereby or by virtue whereof the gas supplied by the Company is required to be of a prescribed illuminating power shall cease to apply with respect to such gas :
- (d) The Company shall cease to be under any liability or obligation to provide or maintain at the prescribed testing place of the Company any apparatus (other than the apparatus to be provided under the section of this Act of which the marginal note is "As to testing for illuminating power with flat flame burner") for testing the illuminating power of the gas supplied by the Company but shall be at liberty to remove from the prescribed testing place any such apparatus which has been provided thereat :
- (e) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for illuminating power shall not apply to the Company and sections 28 29 30 31 32 and 33 of the said Act shall in their application to the Company be construed as if calorific power were therein referred to in lieu of illuminating power Provided that the gas examiner may make the tests under section 29 of the said Act of 1871 as amended by this section at any hour of the day or night Provided further that the Company may if they think fit on each occasion of a testing under the provisions of this section be represented by some officer but such officer shall not interfere in the testing and the corporation shall state at what time it is proposed to make such testing on any particular day upon receiving a request in writing from the Company in the forenoon of the previous day.

Penalties for
deficient
calorific
power.

26. The Company shall not be liable to any forfeiture for defective calorific power where the calorific power on any day of the gas supplied by them is not below the standard calorific power to an extent exceeding seven and one half per centum

but where the calorific power on any day of such gas is below the standard calorific power to an extent exceeding seven and one half per centum the Company shall be liable to the following forfeitures in respect of any deficiency beyond such last-mentioned margin (that is to say):—

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Where the deficiency does not amount to twenty-eight British thermal units a sum not exceeding five pounds;
For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds:

Provided that no forfeiture shall be incurred in any case with respect to which it is proved before the justices that the defect of calorific power was occasioned by unavoidable cause or accident.

27.—(1) Any gas examiner appointed by the corporation may at the prescribed testing place in such manner and by means of a flat flame burner of such pattern as may for the time being be prescribed by the gas referees under section 5 (As to testing for calorific power sulphur impurities and illuminating power with flat flame burner) of the London Gas Act 1905 make testings of such gas for the purpose of ascertaining the illuminating power thereof when consumed in such burner.

As to testing for illuminating power with flat flame burner.

(2) The gas examiner shall forthwith deliver to the corporation and to the Company a report of the result of each testing conducted by him under the provisions of this section.

(3) The Company shall not be liable to forfeitures or penalties in respect of any testing made under the provisions of this section.

(4) The Company shall provide and maintain at such testing place as aforesaid such apparatus and materials as may for the time being be prescribed by the gas referees under the said section 5 of the London Gas Act 1905 for use for the purpose of testings for ascertaining the illuminating power of the gas supplied by the companies referred to in the said Act as ascertained by means of a flat flame burner and shall afford to the gas examiner all facilities for the proper execution of his duty under this section.

(5) The gas examiner shall make in accordance with the provisions of this section testings at such testing place as aforesaid on such days (exclusive of Sundays) as the Corporation shall direct.

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(6) The corporation shall give to the Company not less than six hours' notice in writing of their intention to make a testing under the provisions of this section of the gas supplied by the Company and shall state in such notice the day on which and the hour at which they intend to make such testing.

(7) The provisions of section 31 of the Gasworks Clauses Act 1871 shall apply to any testing made under this section.

Pressure of
gas.

28.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than two inches in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the prescribed testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to
penalties.

29. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Notice to be
given of any
person
desirous to
be elected as
director of
Company or
of opposition
to re-elec-
tion.

30. From and after the passing of this Act no person not being a retiring director of the Company shall be eligible to be elected at any general meeting a director of the Company unless notice in writing is given to the secretary or left at the principal office of the Company fourteen days at least before the day of election that such person will be proposed for election as a director of the Company and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office. Any such person must have been the holder of the qualifying amount of stock for at least three months prior to his election and in the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner.

31. It shall be lawful for the directors of the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenue of the Company.

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Power to make superannuation and other allowances.

32. The Company may enter into any contract with any local authority company or person for a supply of gas for different purposes to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price varying according to the purposes for which the gas is to be supplied and otherwise as may be agreed upon between the Company and the person taking such supply Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for similar purposes from the Company under similar conditions and circumstances.

Company may enter into contracts for supply of gas.

33. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (under the existing powers of the Company) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of re-connecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Occupier to pay expenses of re-connecting discontinued supply.

34. Subject as hereinafter provided all engines fittings apparatus and appliances (in this section referred to as "fittings") let by the Company on hire or under hire purchase agreements shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the owners thereof Provided also that nothing in this section shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

Engines &c. though fixed to premises to remain property of Company.

35. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes)

Minimum charge for gas laid on to premises having a supply of

A.D. 1914. the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises. Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Charge for gas supplied by means of prepayment meters.

36.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintaining of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

37. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of the undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit.

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Power to sell
and lease
lands.

38. The power to enter premises and to remove pipes meters fittings or apparatus conferred on the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to
enter pre-
mises and
remove
fittings.

39. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Company to
pay interest
on money
deposited as
security for
gas meter &c.

40. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

41. Proceedings for the recovery of any demand made under the authority of the Acts of the Company or of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

42. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the

Authenti-
cation and
service of

A.D. 1914.
—
notices by
Company.

signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or of gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Power to lay
down pipes
for ancillary
purposes.

43. The Company may lay down and repair take up alter or relay or renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay
pipes in pri-
vate streets.

44.—(1) The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Acts of the Company and this Act.

(2) The local authority shall be deemed in addition to any other persons to be persons having the control or management of such street for the purposes of the provisions of the Gasworks Clauses Act 1847 with reference to the breaking up of streets for the purpose of laying pipes.

45. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

A.D. 1914.
Anti-fluc-
tuators for
gas engines.

46. Section 32 of the Act of 1898 is hereby repealed and the following provision shall have effect in lieu thereof (that is to say):—

As to supply
to public
lamps.

The price charged for gas supplied to public lamps shall be five per cent. less than the lowest price charged for the time being for gas supplied to private consumers for lighting purposes:

Provided that the estimated rate of consumption of the types of burner in use for public lighting at the time of the passing of this Act shall not be increased and if any other types of burner shall be substituted therefor the rate of consumption of the substituted burners shall be estimated in the same proportion as the capacities of those burners bear to the capacities of the burners for which they may be substituted.

47. The Company may levy and recover such charges as they think fit for taking the reading of any meter fixed in a house which is either in whole or in part let furnished at the request of and for the convenience of consumers at times other than the Company's periodical readings such charges not to exceed the sum of sixpence per reading.

Charges for
special
readings of
meters.

48. Where the payment of more than one sum by any person is due under this Act any summons or warrant issued for the purposes of this Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several sums
in one sum-
mons.

49. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

Power to
directors to
determine re-
muneration of
secretary.

A.D. 1914.

Scheduled
provisions to
apply to
profit-
sharing
scheme.

50. The provisions and regulations respectively set forth in Parts I. and II. of the Third Schedule to this Act shall apply and have effect in relation to any scheme already or which may hereafter be established enabling the workmen servants and employees of the Company (hereinafter called "co-partners") to participate in the profits of the undertaking.

Period of
error in
defective gas
meters.

51. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Power to
take licences
for use of
patents re-
lating to gas.

52. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilization or distribution of gas or materials used in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Amending
obligations
as to supply
of gas.

53. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Company interfere with the sufficiency of the gas required to be supplied by means of such main for lighting purposes.

Dwelling-
houses for
persons in
Company's
employ.

54. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of the undertaking and may erect fit up maintain and let sell or otherwise dispose of any such buildings upon any lands for the time being belonging or leased to the Company.

55. The sections of the Acts of the Company set forth in the Second Schedule to this Act shall be and the same are hereby repealed.

A.D. 1914.

Partial repeal
of certain Acts
of Company.

56. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving as to
general Acts.

57. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Costs of Act.

A.D. 1914. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

DESCRIPTION OF GAS LANDS.

All that piece or parcel of land belonging or reputed to belong to Edward Locke Tomlin and others situate in the parish of St. Peter in the urban district of Broadstairs and St. Peter's in the county of Kent containing by admeasurement seven acres and one rood or thereabouts and being part of the enclosure numbered 95 on the $\frac{25}{100}$ Ordnance map of the said parish (3rd Edition 1907) sheet No. XXVI.-9 bounded on the north side by the Ramsgate Branch of the South Eastern and Chatham Railways on the north-west side by the road leading from the Shallows to the road leading from Dane Road to the electric power station and on the north-east south and south-west sides by other land of the said Edward Locke Tomlin and others.

SECOND SCHEDULE.

Acts and Order Repealed.	Extent of the Repeal.
The Thanet Gas Act 1824.	Section 55 (No pipes of communication to be laid without the consent of the Company) section 56 (Penalty for wilfully damaging pipes &c.) section 57 (Satisfaction for accidental damage of lamps &c.) section 61 (For preventing the escape of gas) section 62 (Remedy for recovery of rents) section 63 (Gas pipes to be laid at a distance from water pipes and in a particular manner) section 64 (Power to convey washings) section 65 (Penalty for conveying washings into river &c.) section 66 (For compelling the attendance of witnesses and respecting service of notices) section 67 (Proceedings to be commenced within three calendar months) section 69 (Recovery and application of penalties) section 70 (Form of conviction) section 71 (Persons paying rates &c. may be witnesses) section 72 (Distress not to be avoided for want of form) section 73 (In what cases Justices may act) section 74 (Proceedings not to be quashed for want of form nor removed by certiorari) section 75 (Plaintiffs not to recover without notice or after tender of amends) section 76 (Limitation of actions &c.).
The Thanet Gas Act 1877.	Section 27 (Pressure of gas).
The Thanet Gas Act 1898.	Section 30 (Burner). Section 20 (If profits exceed the amount limited excess may be invested and form an insurance fund). Section 21 (Application of excess of profits over authorised rate of dividend).

THIRD SCHEDULE.

A.D. 1914.

PART I.

The Company may from time to time issue to the trustees such an amount of stock created or authorised to be created under any Act relating to the Company as the trustees may from time to time require to purchase for the purposes and under the provisions of the co-partnership scheme or to any co-partner at the request of the trustees such amount of stock as the trustees may specify without having previously offered such stock for sale by public auction or tender or to the holders of shares or stock of the Company Provided that any stock issued under the provisions of this section shall be issued at the value of stock of the same class or description at the date of issue such value to be determined as hereinafter mentioned.

Issue of stock
to trustees
and co-
partners.

Subject to and in accordance with the regulations set forth in Part II. of this Schedule any co-partner may nominate any person or persons who on the death of the co-partner shall subject to the provisions hereof and to the extent of a total value of not exceeding one hundred pounds be entitled to be registered as holder of any stock and to be paid any deposits standing in the name or to the credit of the co-partner at his death.

Disposal of
stock and
deposits by
nomination.

(1) After the expiration of one month from the death of a co-partner who has made a nomination in force at his death the directors and the trustees shall subject to the provisions hereof give effect to the nomination to the extent of a total value not exceeding one hundred pounds and shall respectively in accordance with the directions of the nomination but subject to the extent aforesaid register the nominee as holder of the stock and pay to the nominee the deposits standing in the name or to the credit of the co-partner at his death or as the case may be the portion of the stock and deposits mentioned in the nomination Provided that if the directors or trustees receive notice of any claim of a creditor of the deceased co-partner before the expiration of one month from the death of the co-partner they shall not give effect to the nomination until such claim has been satisfied disproved or withdrawn.

Proceedings
on death of
nominator.

(2) Notwithstanding anything in this section if the total value of the stock and deposits standing in the name or to the credit of the co-partner at his death exceeds ninety pounds the directors and the trustees shall before giving effect to the nomination to a greater extent than seventy-five pounds require the production of a duly stamped receipt for the succession duty payable on such stock or deposits or a letter or certificate from the Commissioners of Inland Revenue stating

A.D. 1914. — that no such duty is payable and the Commissioners shall give such receipt letter or certificate on the payment of the duty or satisfactory proof that no duty is payable as the case may be.

Legality of acts done in ignorance of marriage of nominator.

Where the directors or trustees have registered stock in the name of or paid deposits to a nominee in ignorance of a marriage of the deceased co-partner subsequent to the nomination the registration shall be deemed to have been lawfully made and the receipt of the nominee shall be a valid discharge for the sum so paid.

Nomination to take effect as regards stock in priority to deposits.

In the event of the directors or trustees being restricted under the provisions hereof from giving effect to any nomination made by a deceased co-partner and in force at his death to the whole extent of the nomination they shall primarily give effect thereto to the extent to which it relates to stock.

Disposal in case of intestacy.

(1) If any co-partner dies without having made any nomination in force at his death and the total value of the stock and deposits standing in his name or to his credit at his death does not exceed one hundred pounds and probate of the will of the co-partner or letters of administration to his estate are not produced within one month after his death then at the expiration of such month the directors and the trustees shall respectively subject to the provisions hereof register the stock in the names of and pay the deposits to—

(a) The widow (if any) of the deceased co-partner:

(b) If there be no widow the persons entitled to his effects according to the statutes for the distribution of the effects of intestates in the respective shares in which they are entitled under those statutes:

Provided that in every case where the deceased co-partner has left no widow and the persons entitled under the aforesaid statutes are more than two the directors may if they think fit sell the stock and distribute the proceeds among such persons in the shares in which they are entitled under the said statutes and for the purposes of such sale the directors may by a resolution authorise the secretary to execute the transfer of the stock to the purchaser:

Provided also that if the directors or trustees receive notice of any claim of a creditor of the deceased co-partner before the expiration of one month from the death of the co-partner they shall not deal with the stock or deposits under this section until such claim has been satisfied disproved, or withdrawn.

(2) The provisions of this section shall also apply in the case of the death of any co-partner having at his death in his name or to his credit stock or deposits of a total value not exceeding one hundred

pounds who has made a nomination in force at his death where such nomination relates to a portion only of the stock and deposits standing in his name or to his credit at his death but in such case the provisions of this section shall extend only to the portion of the stock or deposits to which the nomination does not relate. A.D. 1914.

(3) Notwithstanding anything in this section if the total value of the stock and deposits standing in the name or to the credit of the deceased co-partner exceeds ninety pounds the directors and the trustees shall before dealing with the stock or deposits under this section to a greater extent than seventy-five pounds require the production of a duly stamped receipt from the Commissioners of Inland Revenue for the legacy duty payable on such stock and deposits or a letter or certificate from the Commissioners of Inland Revenue stating that no such duty is payable and the Commissioners shall give such receipt letter or certificate on payment of the duty or satisfactory proof that no duty is payable as the case may be.

(4) Any registration of stock in the name of or payment of deposits or the proceeds of a sale to any person who at the time appears to the directors to be entitled to such stock proceeds or deposits or any person on behalf of or for the benefit of or as trustee for any person who at the time appears to the directors to be entitled under the foregoing provisions of this section to such stock proceeds or deposits under either of the sections hereof of which the marginal notes are "Provisions as to infant beneficiaries" and "Directors may appoint trustee for infant beneficiary" and any sale of stock to a bonâ fide purchaser made by the directors or the trustees under the provisions of this section shall be valid and effectual against any demand made upon the Company the directors or the trustees by any other person Provided nevertheless that the next of kin or lawful representative of the deceased co-partner shall have remedy for recovery of such stock proceeds or deposits against the person in whose name the same has been registered or to whom the same has been paid but nothing in this proviso shall confer upon any person any right of action or other remedy for recovery of stock proceeds of sale or deposits or otherwise against a bonâ fide purchaser of such stock or against the widow of a deceased co-partner or shall confer upon any person in trust for whom or on behalf or for the benefit of whom the stock proceeds or deposits have been so registered or paid any such right of action or remedy against the person in whose name or to whom the same have been registered or paid.

In every case where under the provisions hereof any beneficiary would be entitled to be registered as the holder of any fractional part of one pound of stock either alone or together with an integral number of pounds of stock it shall be lawful for the directors in lieu of registering such beneficiary as holder of such fractional part of one

Provisions as to fractional parts of one pound of stock.

A.D. 1914. — pound of stock to pay to him a sum in cash equal to the value of such fractional part on the date of the death of the co-partner in whose name the stock was previously registered and the trustees shall forthwith repay such sum to the directors out of any moneys in their hands requiring to be invested under the co-partnership scheme and such fractional part of stock shall forthwith be registered in the names of the trustees.

Provisions as to infant beneficiaries.

Where any beneficiary is an infant under the age of sixteen years and it is proved to the satisfaction of the directors that the funds are needed for the maintenance education or benefit of such infant the directors and the trustees may respectively notwithstanding any other provisions hereof register the stock and pay the deposits to which the infant beneficiary is entitled or any part thereof in the name of or to any person who may satisfy the directors that he will apply any money so paid to him or received by him from the sale of or as interest on such stock for the maintenance education or benefit of such infant and the receipt of such person shall be a good discharge to the directors and trustees for any sums so paid.

Directors may appoint trustee for infant beneficiary.

Where any beneficiary is an infant under the age of sixteen years it shall be lawful for the directors by a resolution to appoint any person whom they think fit to act as trustee for such infant beneficiary and thereupon the directors and the trustees shall respectively notwithstanding any other provisions hereof register the stock and pay the deposits to which the infant beneficiary is entitled to such person and such person shall apply the deposits and the dividends on the stock or shall sell the stock or any part thereof and apply the proceeds of such sale for the maintenance education or benefit of the infant beneficiary and the receipt of such person shall be a good discharge to the directors and trustees for any sums so paid Provided always that if and when the infant beneficiary attains the age of sixteen years the person so appointed shall transfer or pay to the beneficiary any stock deposits or proceeds of sale then held by such person on behalf of the beneficiary.

Power to infant beneficiary over sixteen to sell stock.

Where any beneficiary is an infant but over the age of sixteen years it shall be lawful for the infant to sell and transfer any stock registered in his name to the trustees at the value thereof to be determined in manner hereinafter appearing and the trustees if so required by the beneficiary shall apply any moneys in their hands requiring to be invested under the co-partnership scheme in the purchase of such stock.

Estate duty payable in certain cases.

When the principal value of the estate for the purpose of estate duty of any deceased co-partner exceeds one hundred pounds any stock registered or deposits standing in his name or to his credit at his death shall be deemed for the purpose of estate duty to be property passing on the death of the co-partner but neither the

directors nor the trustees shall be accountable for the payment of the estate duty in respect of any stock or deposits which they have registered paid over distributed or otherwise disposed of in accordance with the provisions hereof. A.D. 1914.

The directors and trustees before dealing with any stock or paying to any person any deposits standing in the name or to the credit of a deceased co-partner shall satisfy themselves that the principal value of the estate for the purpose of estate duty of the deceased co-partner does not exceed one hundred pounds and in the absence of other evidence to their satisfaction shall be empowered to require a statutory declaration by such person or some beneficiary to that effect and if such principal value exceeds one hundred pounds they shall before dealing with the stock or paying the deposits to any person other than the legal personal representative of the deceased co-partner to an extent greater than three-fourths of the total value of such stock and deposits require production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty.

Power to
require de-
claration of
value of
estate.

For the purposes hereof the value of any stock shall be deemed to be the average price at which according to the Company's books sales of stock of the same class or description were effected within the period of six months immediately preceding the date on which the value of the stock is required to be determined after making due allowance for any enhancement in price by reason of any accrued dividend and such average price shall be certified by the secretary.

Value of
stock.

PART II.

REGULATIONS AS TO NOMINATIONS BY CO-PARTNERS.

1. A nomination shall be in writing in the form prescribed by the directors and shall be signed by the appointor in the presence of a witness and shall be sent by post or otherwise to the secretary during the lifetime of the appointor.

2. A nomination when received by the secretary shall be registered by him and the receipt thereof shall be acknowledged but the secretary may refuse to register a nomination which does not comply with these regulations.

3. A nomination which does not comply with these regulations or has not been received by the secretary shall not have any validity or effect.

4. A nomination may be revoked by the appointor by a subsequent nomination registered in accordance with these regulations or by writing under his hand signed in the presence of a witness and the revocation shall be sent by post to or left at the office of the secretary during the lifetime of the appointor.

A.D. 1914.

5. A revocation when received by the secretary shall be registered in like manner as in the case of a nomination and the receipt thereof shall be acknowledged.

6. A revocation which does not comply with these regulations or has not been received by the secretary shall not have any validity or effect.

7. The marriage of an appointor shall operate as a revocation of any nomination theretofore made by that appointor.

8. A nomination may relate to the whole of the stock and deposits standing in the name or to the credit of an appointor or to part only of such stock and deposits.

9. Except where otherwise stated a nomination shall be deemed to extend to all stock and deposits to which an appointor is entitled at the time of his decease up to a total value not exceeding one hundred pounds but an appointor may in a nomination expressly exclude any part of such stock or deposits from the operation of such nomination.

10. A nomination may be in favour of one person or of several persons and in the latter case may subject as hereinafter mentioned direct that on the death of the appointor the stock shall be registered in the name of and the deposits shall be paid to one or more of the nominees or that the nominees shall be registered as owners of the stock and shall take the deposits or any of them respectively in specified shares or may give directions to both effects Provided that it shall not be lawful for a nomination to direct that stock shall be registered in the names of more than two persons as joint holders.

11. No person who witnesses the signature of an appointor to a nomination shall take any benefit under such nomination.

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